

RECEIVED

JUN 01 2026

NOTICE OF TRUSTEE'S SALE

THE STATE OF TEXAS §
 §
 COUNTY OF NUECES §

KARA SANDS
 CLERK OF THE COUNTY COURT
 NUECES COUNTY, TEXAS

KNOW ALL PERSONS BY THESE PRESENTS:

THAT, WHEREAS, on or about **Luis Armando Yanez-Acuna March 16, 2022** ("**Borrower**"), executed and delivered to **Lee J. Schmitt**, Trustee whose address is **P O Box 870 Lancaster, Texas 75146**, for the benefit of **NEXTLOTS NOW, LLC**, a Texas limited liability company ("**Lender**"), that certain (the "**Deed of Trust**"), recorded in as Instrument# **2022016410** of the Official Records of Nueces County, Texas, to secure payment of that certain **OF THE PROMISSORY NOTE** in the original principal amount of **\$75,000.00**, dated **March 16, 2022**, and the other indebtedness, liabilities, and obligations described in the Deed of Trust (collectively, the "**Indebtedness**");

WHEREAS, pursuant to and in accordance with the terms and conditions of the Deed of Trust, Lender hereby appoints **Lee J. Schmitt** an individual ("**Trustee**"), whose address is **P O Box 870 Lancaster, Texas 75146**, to succeed to all of the rights, powers, and estates granted and delegated in the Deed of Trust to the Original Trustee and any subsequent trustee; and

WHEREAS, the Deed of Trust creates liens on certain real property situated in **Nueces County, Texas** more particularly described on Exhibit A attached hereto and made a part hereof (the "**Land**"), including any improvements located thereon (the "**Improvements**", and collectively with the Land, the "**Mortgaged Property**"); and

WHEREAS, Lender has made demand upon Borrower to pay to Lender the Indebtedness, but Lender has not been paid; and

WHEREAS, Lender has accelerated the Indebtedness and the Indebtedness is now due and payable; and

WHEREAS, Lender as owner of the Indebtedness has requested Trustee to sell the Mortgaged Property to satisfy, in whole or in part, the Indebtedness.

NOW, THEREFORE, NOTICE IS HEREBY GIVEN that on **Tuesday, July 7, 2026, at 10:00 A.M.** or no later than three hours after that time, Trustee, or a subsequently appointed successor substitute trustee, will commence the sale of the Mortgaged Property, in parcels or as a unit, at public auction to the highest bidder for cash; such sale will be held at the area designated for such sales by Resolutions of the Commissioner's Court of **Nueces County, Texas**, SUBJECT, HOWEVER, to all liens, exceptions to title, easements, restrictions, and encumbrances affecting any of the Mortgaged Property or title thereto which are equal or prior to the liens and security interests created by the Deed of Trust.

To the extent that any of the Mortgaged Property has been released from the lien of the Deed of Trust, this notice is not intended to cover such property, and such property will not be part of the property conveyed to the purchaser hereunder.

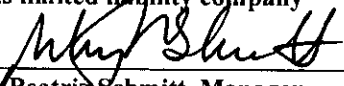
Pursuant to section 51.009 of the Texas Property Code, the Property will be sold "**AS IS,**" without any expressed or implied warranties, except as to the warranties (if any) provided for under the Deed of Trust. Prospective bidders are advised to conduct an independent investigation of the nature and physical condition of the Property.

Pursuant to section 51.0075(a) of the Texas Property Code, Trustee reserves the right to set further reasonable conditions for conducting the Foreclosure Sale. Any such further conditions shall be announced before bidding is opened for the first sale of the day held by Trustee.

Assert and protect your rights as a member of the armed forces of the United States. If you are or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active duty military service to the sender of this notice immediately.

If such sales do not result in full satisfaction of all of the Indebtedness, the liens and security interests of the Deed of Trust shall remain in full force and effect with respect to any of the Mortgaged Property not so sold and any and all items and types of real and personal property covered by the Deed of Trust and not described herein.

LENDER: NEXTLOTS NOW, LLC,
a Texas limited liability company

By: 
Name: Beatriz Schmitt, Manager

EXECUTED effective as of May 28th, 2026

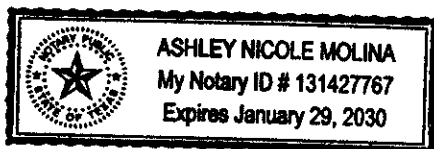

Lee J. Schmitt, Trustee

THE STATE OF TEXAS §
 §
COUNTY OF DALLAS §

This instrument was acknowledged before me on May 28th, 2026, by

Lee J. Schmitt, in the capacity therein stated.

[SEAL]




Notary Public in and for the State of Texas

Exhibit A

Legal Description of the Land

Property (including any improvements):

6.00 Acres, More Or Less, Situated In The 'Casa Blanca' Juan Jose De La Garza Montemayor Etal Survey, Abstract 221, Nueces County, Texas, Being Lot 8, And Lot 9, Country Club Estates West, An Unrecorded Subdivision; Said 2.00 Per Lot As Described In Deed Dated August 24, 1999, From Chaminade Capital Corporation To Associates Financial Services Company, Inc., In Clerk's File #1999044465, Official Public Records Of Nueces County, Texas.

(Address: Michelle Street (lots 8 And 9) Robstown, Nueces County, Texas 78580)



VG-38-2026-2026000329

**Nueces County
Kara Sands
Nueces County Clerk**

Instrument Number: 2026000329

Foreclosure Posting
FORECLOSURE NOTICE

Recorded On: June 01, 2026 10:59 AM

Number of Pages: 4

" Examined and Charged as Follows: "

Total Recording: \$7.00



**STATE OF TEXAS
Nueces County**

I hereby certify that this Instrument was filed in the File Number sequence on the date/time printed hereon, and was duly recorded in the Official Records of Nueces County, Texas

Kara Sands
Nueces County Clerk
Nueces County, TX

***** **THIS PAGE IS PART OF THE INSTRUMENT** *****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

File Information:

Document Number: 2026000329
Receipt Number: 20260601000104
Recorded Date/Time: June 01, 2026 10:59 AM
User: Regina C
Station: CLERK05

Record and Return To:

NEW HOUSE MARKETING INC
PO BOX 865

LANCASTER TX 75146